



TENANT OFFER FORM TO RENT RESIDENTIAL PROPERTY

By signing and completing this document, you are agreeing that **Elizabeth Wightwick Limited** enter into negotiations with the owner of your selected property.

Applicant Name/s: _____

Property Address: _____

Post Code _____ Rental Amount _____

Preferred Move in Date _____ Proposed Length of tenancy _____

Your current address: _____

Post Code _____ Daytime Tel _____

Mobile Tel _____ E-mail _____

Occupation _____ Job Start Date _____

Job Title _____

References (to whom the landlord may apply for a reference for you)

Employment

Current Landlord

Company Name _____ Name _____

Contact _____ Address _____

Address _____

Postcode _____ Postcode _____

Tel _____ Tel _____

Fax _____ Fax _____

Email _____ Email _____



Alternative Address

Please provide an alternative address so we are able to contact you at the end of the tenancy. For example parents, relatives, or friends, address

Address _____	Address _____
_____	_____
Postcode _____	Postcode _____
Tel _____	Tel _____
Fax _____	Fax _____
Email _____	Email _____

Are you a Politically Exposed Person (PEP)? **Yes / No**

By signing the document, you confirm that the information provided is correct.

Signed _____	Date _____
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Further Information / Conditions of Offer

Will there be any residents under the age of 18? [Yes] / [No] Do you have any pets or animals? [Yes] / [No]

If you have answered **YES** to either of the questions above, please **use the space below** to provide any relevant details. Please also use this space should there be anything else that you wish to make the owner aware of. Please use the space below, should you have any further requests. If agreed by the owner, these will be included in the tenancy agreement

For your benefit and protection it is important that you carefully read the Terms and Conditions below/overleaf before signing below, as by signing you agree that these regulate the contractual relationship between us. If there are any terms that you do not understand, please ask for further information before signing.

I/we request that you process this offer form before the cancellation period referred to in Condition 18 of the Terms and Conditions has expired.

I/we understand that if you have completed any of the services, I/we cannot change my mind even if the period is still running and if I/we cancel within 14 days under Condition 18 of the Terms and Conditions, I/we shall pay you any amounts that have become properly due to you under the Terms and Conditions in relation to services already provided by you on my behalf prior to my/ our informing you of my decision to cancel.

Signed _____

Date _____



TENANT OFFER FORM TERMS AND CONDITIONS

1. Interpretation

1.1 In these Terms and Conditions, references to “we” or “us” or “our” are to Elizabeth Wightwick Limited, a company registered in England and Wales with company number 10669465 and whose place of business is at 60 High Street, Wimbledon Village, London SW19 5EE, and references to “you” or “your” are to the applicants named on the Tenant Offer Form.

2. Fees

2.1 Where we are authorised by the landlord to collect the rent from you please be aware notice of late payment of rent will be issued 1 working day after the due date. If payment is not received within 5 working days of the due date, a further notice will be issued; the cost of those notices is to be paid by you at a charge of £50 + VAT (£60 inc VAT). Should any further notices be sent thereafter the costs of issuing these at the same rate will be also payable by you until the rent due is received in full.

2.2 If you require a written reference during the tenancy agreement and we agree to provide it, this will be supplied at a cost of £25 plus VAT (£30 inc VAT).

2.3 Should you wish to change the identity of the tenants it is your obligation to obtain written consent from the landlord for any change in the identity of the tenants in accordance with the tenancy agreement. Upon receipt of the landlord’s consent, where we draw up an amended tenancy agreement for signature by all parties you will be charged an administration fee of £150 + VAT (£180 inc VAT) for this service.

2.4 Please see condition 6 for the sums payable at the end of your tenancy and if you terminate early.

3. Deposit

3.1 A deposit equivalent to six weeks’ rent must be paid in cleared funds when you sign the tenancy agreement and is held by us as Stakeholder for the duration of the tenancy against any unpaid rent, bills, dilapidations and other costs or losses incurred by the landlord as a result of any breach by the tenants of the terms of the tenancy agreement.

3.2 We are a member of a Tenancy Deposit Scheme, which is administered by mydeposits. Full details of the scheme are at www.mydeposits.co.uk.

3.3 Where applicable, we will hold the deposit in accordance with requirements of the Housing Act 2004 under the terms of the Tenancy Deposit Scheme. Under this scheme undisputed deposits must be returned to you within 10 days of termination of the tenancy. We shall not be liable in relation to loss caused by the insolvency of a financial institution which holds deposits under its contracts with landlords and tenants. Any interest earned on the deposit shall be retained by us.

3.4 If a dispute arises at the end of a tenancy in relation to the deposit, the terms of the Tenancy Deposit Scheme apply. You agree in signing this document to co-operate with any adjudication under that scheme and agree that the decision of the scheme examiner is final and binding. You or the landlord may choose to seek the decision of the courts instead and your statutory rights to do so are not affected by these Terms and Conditions.

4. Payment of rent

4.1 The first period’s rent must be paid in cleared funds when you sign the tenancy agreement. Thereafter, rent is payable by standing order (unless agreed otherwise) to arrive on the due date as stated in the tenancy agreement. This means that the standing order must be set up so that the funds leave your account 3 working days before the rent is due.

5. Other payments and early departure

5.1 We will be instructed by the landlord as to what arrangements are to be made for the inventory and check-in. Unless agreed otherwise, the landlord will be responsible for the costs of the inventory and check-in and check-out. We

recommend you to ensure you make yourself available for check-in and check-out.

5.2 Should you wish to terminate your tenancy before the end of the term: a) you will remain liable to pay rent until the term expires or the property is re-let, whichever is earlier; and b) If the property is re-let during the fixed term, you will be responsible for paying to the landlord any pro-rata commission fees that have been or will be incurred by the landlord for the unexpired portion of the tenancy (where we are letting agent, this fee is calculated at 10% (12% inc VAT) of the rent for the fixed term of the tenancy) AND if the new tenancy is for a lesser rent, an amount equal to the difference between the original rent and the new lower rent figure up to the end of the original term; and c) You will also be responsible for any other reasonable costs (e.g. telephone lines, satellite television contracts, TV licences, cleaning, and administration fees) incurred from that point until the end of the term. For the avoidance of doubt, this clause does not apply where you are exercising a break clause which is contained in your tenancy agreement. Funds must be remitted to us before the necessary document of surrender can be completed.

6. VAT

6.1 All charges levied by us are subject to VAT at the prevailing rate. References in these terms are to any amount of VAT at the current rate of 20%: should that change then you will become responsible to pay VAT at the changed rate.

7. References/identification

7.1 We will take up references based on the details that you have supplied to us. In signing this form you consent to your personal data being provided to credit reference and other agencies used by us for credit checks and referencing to process your request for a tenancy and to us sharing your information and passing the results of any referencing process to the landlord and his/their mortgagee any superior landlord and their agents, and risk underwriters so that they can make a decision on proceeding with the tenancy. The landlord(s) may decline to proceed with any tenancy or move where unsatisfactory or late references are provided.

7.2 You are responsible for any administration charges levied by your own bank in relation to giving any reference.

7.3 To satisfy UK Regulations we will need to obtain and hold evidence confirming your identity in the form of a passport or driving licence, proof of your address, and source of funds. We will be unable to proceed with any offer until we are in receipt of this information and have completed a satisfactory check. You consent to us making an electronic identity check and for that purpose using your personal information you have supplied to us. Your identity may be subject to an electronic identity check which may leave a soft footprint on your credit report.

8. Right to Rent

8.1 On the acceptance of an agreeable offer (subject to contract), you must provide evidence of your right to remain in the UK, and your right to rent in England. This is a statutory requirement for all occupants aged 18 and over. We will pass this to the landlord who is responsible for carrying out these checks so that they can make a decision on whether to grant you a tenancy.

9. Condition and Furnishings

9.1 The level of furnishing provided at the property will be as at the time you view the property, unless something else is agreed in writing and acknowledged in the tenancy agreement. If there is a particular item important to you, please ensure that you note it on the Tenant Offer Form. Whilst we make every attempt to portray all advertised properties as clearly as possible using floor plans and photographs, we cannot, subject to condition [12], be responsible for your satisfaction upon moving in when you have not viewed the property in person.



10. Management of the property

10.1 At the start of the tenancy we will advise you who is responsible for managing the property. This is not always us. Where we are not managing the property we cannot authorise any repairs or maintenance or guarantee the speed at which repairs will be carried out. Where we are managing the Property, in most circumstances, we have to obtain the landlord's consent before proceeding with a repair.

10.2 Where we manage a property and hold keys, we can usually provide access to our contractors (with your permission). However where we do not hold keys or the contractor is not willing to collect keys, it is your responsibility to provide access.

11. Insurance

11.1 It is your responsibility to insure your own belongings throughout the tenancy.

12. Utilities

12.1 It is your responsibility to ensure that your utility accounts are activated correctly, that meter readings are provided to the appropriate companies at the start and end of your tenancy and for payment of all utilities and council tax. You must also notify the local authority of your new residence and ensure that a valid television licence remains in place for the duration of your tenancy.

12.2 Utility companies will also always require the occupant to provide access for any visit.

13. Liability

13.1 Nothing in these Terms and Conditions shall limit or exclude our liability for: (a) death or personal injury caused by our negligence, or the negligence of our employees, agents or subcontractors; or (b) fraud or fraudulent misrepresentation.

13.2 Subject to condition 13.1

13.2: (a) We are not responsible for any loss or damage that is not a foreseeable result of our failure to comply with these Terms and Conditions or our negligence. Loss or damage is foreseeable if they were an obvious consequence of our breach or if they were contemplated by you and us at the time we entered into this contract; and

b) We only supply our services for your personal use. You agree not to use our services for any commercial or business purpose. We accept no liability to you for any loss of profit, loss of business, business interruption, or loss of business opportunity that may occur.

14. Reimbursing our costs

14.1 You will reimburse us any and all our reasonable costs, loss, and expenses incurred by us, howsoever caused or incurred, which result from your breach of or failure to comply with the terms of the tenancy agreement or these Terms and Conditions.

15. Warranty

15.1 You warrant that all information provided in relation to your application is correct and wholly accurate.

16. Taxation

16.1 If the tenancy agreement requires payment of rent directly into the bank account of the landlord and the landlord is resident outside the United Kingdom, it is your responsibility to comply with the statutory requirements for deducting tax at source under the Non-Resident Landlords Scheme and accounting to HM Revenue and Customs. We can provide information on this where it applies to your tenancy agreement. These provisions do not apply where you are paying your rent to us.

17. Subletting

17.1 By completing the Tenant Offer Form, you confirm that you intend to enter into a private residential tenancy in your name and that you will not, without the prior consent of the landlord:

(i) sublet the property; or

- (ii) advertise the property on any print or other media, including (but not limited to) internet-based marketing website, or other social media or messaging website or app; or
- (iii) take in paying guests or lodgers; or
- (iv) make the property available for short term lets or rental.

18. NOTICE OF RIGHT TO CANCEL DISTANCE AND OFF-PREMISES CONTRACTS – APPLIES TO A “CONSUMER” ONLY:

18.1 Where you are a consumer (that is you are not entering into this in the course of carrying on a business), then you have the following rights of cancellation in relation to contracts defined as “off-premises contracts” or “distance contracts” in the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013

Off-premises contracts:

A contract between you and Elizabeth Wightwick Limited will be off-premises if one of the following is true:

it is concluded in the simultaneous physical presence of you and our representative in a place which is not our business premises; or

an offer was made by you in the simultaneous physical presence of you and our representative, in a place which is not our business premises; or

it is concluded on our business premises or through any means of distance communication immediately after you have personally and individually been addressed in a place which is not our business premises

You have a right to cancel this contract without giving any reason or incurring any liability during the cancellation period.

Distance contracts:

If you accept these Terms and Conditions of Business by the exclusive use of one or more means of distance communication up to and including the time at which the contract is concluded You have the right to cancel the contract without giving any reason or incurring any liability during the cancellation period.

18.2 These rights can be exercised by delivering or sending (including by electronic mail) a cancellation notice to Elizabeth Wightwick Limited at any time within the period of 14 days starting from the day after the contract is entered into. You should write to the Managing Director Elizabeth Wightwick Limited 60 High Street, Wimbledon Village, London SW19 5EE email: Info@elizabeth-wightwick.co.uk. Notice of Cancellation is deemed to be served as soon as it is posted or sent to Elizabeth Wightwick Limited or in the case of electronic communication, from the day it is sent to us.

18.3 We recommend giving notice in writing and keeping a copy. A form of cancellation notice is provided below, but it is not obligatory use this form.

18.4 A Tenancy Agreement entered into between you and a landlord is separate from this contract made between you and us. The cancellation of this contract will not terminate any Tenancy Agreement that you have or do enter into with a landlord. The right to cancel set out in this condition relates solely to this contract with us.

19. Data Protection & Privacy

19.1 The Agent is registered under the Data Protection Act 1998 and undertakes to comply with the Act in all its dealings with your personal data. The Agent may be required by The Property Ombudsman or other regulatory bodies or agencies for the purpose of monitoring the Agent's compliance with the TPO Code of Practice or other regulatory requirements and by signing the instruction form, the Owner consents to disclosure of such information.

19.2 Occasionally the Agent may contact you by letter, telephone, email or otherwise to inform you about other products and services it offers. If you do not wish to receive such communications, the Owner may write to the Managing Director, Elizabeth Wightwick Limited, 60 High Street Wimbledon Village London SW19 5EE email: info@elizabeth-wightwick.co.uk requesting no such communication

20. Complaints procedure



20.1 Should you have any problems with our service which you are unable to resolve with the negotiator involved you should write to the Managing Director at Elizabeth Wightwick Limited. Your complaint will be acknowledged within three working days of receipt and an investigation undertaken. A formal written outcome of the investigation will be sent to you within 15 working days. This letter will confirm that you are entitled, if dissatisfied, to refer the matter to the Property Ombudsman for a review within twelve months of the date of the letter for a review. For the avoidance of doubt, The Property Ombudsman will only review complaints made by consumers.

20.2 We are committed to providing a professional service to all our clients and customers. When something goes wrong, we need you to tell us about it. This will help us to improve our standards.

If you have a complaint, please put it in writing, including as much detail as possible. We will then respond in line with the timeframes set out below (if you feel we have not sought to address your complaints within eight weeks, you may be able to refer your complaint to the Property Ombudsman to consider without our final viewpoint on the matter).

What will happen next?

- We will send you a letter acknowledging receipt of your complaint within three working days of receiving it, enclosing a copy of this procedure.
- We will then investigate your complaint. This will normally be dealt with by the office manager who will review your file and speak to the member of staff who dealt with you. A formal written outcome of our

investigation will be sent to you within 15 working days of sending the acknowledgement letter.

- If, at this stage, you are still not satisfied, you should contact us again and we will arrange for a separate review to take place by a senior member of staff.
- We will write to you within 15 working days of receiving your request for a review, confirming our final viewpoint on the matter.

If you remain dissatisfied, you can then contact The Property Ombudsman to request an independent review:

The Property Ombudsman Ltd
Milford House
43-45 Milford Street
Salisbury
Wiltshire
SP1 2BP
01722 333 306
www.tpos.co.uk

Please note the following:

You will need to submit your complaint to The Property Ombudsman within 12 months of receiving our final viewpoint letter, including any evidence to support your case.

The Property Ombudsman requires that all complaints are addressed through this in-house complaints procedure, before being submitted for an independent review.

21. Governing law and jurisdiction

21.1 These Terms and Conditions are governed by English law. You and we both agree to submit to the nonexclusive jurisdiction of the English courts. However, if you are a resident of Northern Ireland you may also bring proceedings in Northern Ireland, and if you are a resident of Scotland, you may also bring proceedings in Scotland.

Signed _____	Date _____
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Signed _____	Date _____
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Elizabeth Wightwick Limited 60 High Street, Wimbledon Village, London SW19 5EE email:

info@elizabeth-wightwick.co.uk

Registered office: 1 Spinney Close New Malden Surrey KT3 5BQ

CRN 10669465:England



Notice of Right to Cancel a Distance Contract or Off-premises Contract pursuant to the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013

This form may be used if you are a "Consumer" and want to exercise your right to cancel a Distance contract or Off – premises contact you have with Elizabeth Wightwick Limited (see paragraph 18 of Elizabeth Wightwick Terms and Conditions of Business)

RIGHT TO CANCEL

You have the right to cancel this contract within 14 days without giving any reason. The cancellation period will expire after 14 days from the day the contract was entered into.

CANCELLATION FORM

To: Elizabeth Wightwick Limited Residential Letting Agents
60 High Street, Wimbledon Village, London, SW19 5EE

I/We (delete as appropriate) hereby give notice that I/We (delete as appropriate) wish to cancel my/our (delete as appropriate) agreement with you relating to the property:

Signed by me/us on the _____ day of _____ 20____

Signed: _____
Name _____

Signed: _____
Name _____

Address _____

Date: _____

